KUFANDADA DZOBO
versus
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS
and
THE PRESIDENT OF ZIMBABWE N.O
and
MANICALAND PROVINCIAL ASSEMBLY OF CHIEFAS
and
NATIONAL COUNCIL OF CHIEFS
and
CLAYTON MUNYARADZI ZIMUNYA
and
DENNIS MUNYARARI

HIGH NCOURT OF ZIMBABWE
MUZENDA J
MUTARE, 13 & 27 July 2026

OPPOSED APPLICATION

Mr *V Chinzamba*, for the applicant
Mr *P Garwe*, for 1st to 4th respondents
Mrs *M. Mandingwa*, for the 5th respondent
Mr *P Nyakureba*, for the 6th respondent

MUZENDA J:

1. Appointment of chiefs in Zimbabwe has become a big business for legal practitioners since independence in 1980. Numerous applications flood the superior courts seeking removal and appointment of chiefs. Both the High and Supreme courts are regularly inundated with actions to either deal with suits or reviews urging the courts to declare the appointments a nullity or to review the entire process of the appointment citing failure to abide with expected customary law practices of a clan or tribe, bias, alleged corruption or political interferences. Death of an incumbent chief has caused a lot of acrimony in the chieftainship houses and competition among the families has almost invariably occurred in each case leading to heated debates and financial commitments to meet legal costs and other

overheads. In most cases it is the legal profession which emerges greatly enriched and losing houses licking financial wounds.

2. Applicant approached this court seeking review of the appointment of the now chief Mr. Clayton Zimunya, the fifth respondent. The application was heard by SIZIBA J who, after respondents took objections, dismissed the matter. Applicant appealed to the Supreme Court, the latter upheld the appeal and remitted the application for a fresh hearing before a different judge. When the matter was remitted sixth respondent had an application pending before the High Court and it was therefore directed that it was prudent to join him to this matter since sixth respondent was equally not happy with how respondent was appointed chief. Applicant and sixth respondent want the appointment set aside and the process be re-instituted.
3. Applicant and sixth respondent are seeking the following relief:
   3.1. The recommendation of the fifth respondent for appointment as Chief Zimunya by the first respondent to the second respondent be and is hereby declared to be flawed, unlawful and unconstitutional.
   3.2. The actions of the first respondent in rejecting the advice of the third and fourth respondents and proceeding to initiate his own process of choosing Chief Zimunya without involving the Kingmakers, be and is hereby declared to be unprocedural, unlawful and unconstitutional.
   3.3. The finding by the first respondent that only the Muchakaruka Family was eligible for the Zimunya Chieftainship was not in accordance with the customs and usages of the Zimunya people and consequentially wrong and unlawful and is hereby declared to be incorrect.
   3.4. The appointment of the fifth respondent as Chief Zimunya was unprocedural, unconstitutional, unlawful and not in accordance with the customs and usages of the Zimunya people and consequentially void and is hereby set aside.
   3.5. The respondents be and are hereby ordered to pay costs suit on a higher scale of attorney-client.

4. Fifth respondent's preliminary point.

4.1. Fifth respondent in his supplementary heads after the matter was remitted by the Supreme Court raises a point *in limine* to the effect that applicant and sixth respondent prematurely sought relief before this court without exhausting available domestic remedies provided in the relevant statute particularly constitutionally prescribed internal dispute resolution mechanisms.

4.2. To the contrary applicant and sixth respondent contend that they exhausted all the available steps and cited the case of *Moyo* v *Forestry Commission*[1] where the superior court confirmed that the requirement to exhaust domestic remedies is not absolute and does not apply where the remedy is illusory, ineffective or has already been exhausted.

4.3. It must be noted from the perusal of the papers filed of record that fifth respondent is already a substantive chief and even if applicant and sixth respondent resort to external remedies, no other authority is capable of reviewing the procedure, more importantly where the President has signed all the appointment letters. A litigant is not permitted at law to raise an academic or moot point *in limine* which does not go to the root of the relief sought by an applicant. An objection should be capable of disposing of the matter in the event that a court upholds it. *In casu* the point *in limine* on exhausting internally built domestic remedies in my view lacks merit, the only available remedy to applicant and sixth respondent would be to approach this court for review. The point *in limine* lacks merit and is dismissed.

5. On merits

5.1. The applicant's major complaint against the first respondent, (the Minister of Local Government and Public Works) is that he recommended fifth respondent for appointment by the President contrary to the advice of both the Manicaland Provincial Assembly of Chiefs and National Council of Chiefs (third and fourth respondents respectively) and further that the Zimunya Kingmakers were not consulted in accordance with the established customs and usages of the Zimunya dynasty and

[1] SC 16/13

practices. This to this court is the fundamental bedrock which applicant seeks to rely on to seek review.

5.2. The sixth respondent aligns his complaint with that of the applicant. The sixth respondent added that the first respondent (Minister of Local Government and Public Works) did not follow the provisions of the constitution nor the Traditional Leaders Act, instead he appointed a commission to research on the appointment of fifth respondent as substantive chief. The conduct of the first respondent is precisely forbidden by both the constitution and the Traditional Leaders Act, it was submitted. In recommending fifth respondent, the first respondent totally sidelined and ignored the recommendations of the third and fourth respondents. Third respondent is required by law to consult the Kingmakers as well as verifying with the tradition and culture of that clan before sending its papers to the fourth respondent, it was argued. Applicant and sixth respondent condemn this omission by first respondent and submitted that it is because of this conduct by first respondent which taints the subsequent recommendation to the second respondent.

5.3. The question for determination is therefore whether the recommendations for appointment of fifth respondent was done in accordance with the law.

6. The law

6.1. Matters of law seem to have been well settled in the case of *Benard Murwira Marange* v *Zvidzai Zvoma Marange and 2 Ors*[2]

6.2. It is now settled law that by virtue of ss 26 and 27 of the High Court Act[3] this court has jurisdiction to enquire into the conduct of the Minister (first respondent) as an administrative authority and to ascertain whether that conduct fell within the law.

6.3. It is further clear that s 280 of the constitution recognizes the institution, status and role of traditional leaders under the constitution, while s 281 underscores the principles to be recognized by traditional leaders. Section 282 spells out the functions of traditional leaders within their respective areas of jurisdiction. Sections 285 and 286 of the constitution provide for the establishment of the National and Provincial Council of

[2] SC 1.21 per PATEL JA (as he then was)
[3] Chapter 7:06

Chiefs by virtue of s 286(1)(f) one of the functions of a provincial assembly is to "facilitate the settlement of disputes between and concerning traditional leaders" within its province. Section 283 of the constitution relates to the appointment and removal of traditional leaders and the appointment shall be done "in accordance with the traditional practices and traditions of the communities concerned."

6.4. Section 3(1) of the Traditional Leaders Act[4] empowers and obligates the President to appoint chiefs to preside over communities inhabiting communal land and resettlement areas. In performing this critical appointment function, the President is enjoined by s 3(2) to give due consideration to the prevailing customary principles of succession and, wherever practicable, to appoint a person nominated by the appropriate persons in the community concerned in conformity with those principles. Section s 3(3) of the Act enables the president to remove a chief from office for good cause. Section 35(1) of the Act caters for a provincial assembly for each province and s 36(b) creates one of the principal functions of a provincial assembly to consider and report on matters of concern referred to it by the Minister, National Council or a member of such an assembly.

6.5. Section 283 of the Constitution does not constitute the actual Code that govern the appointment and removal of chiefs or the resolution of disputes in that aspect, it enunciates the template to be applied in the formulation and implementations of that Code and the Traditional Leaders Act provides a requisite legislative framework contemplated by s 283 of the Constitution.

6.6. In the case of *Rutsate* v *Wedzerai & Ors*[5] it was held that the High Court while retaining its review jurisdiction must respect the Constitutional separation of powers and cannot assume functions that are expressly assigned to the executive. The appointment of a Chief is a matter for the President, acting in accordance with s 283 of the Constitution and the Traditional Leaders Act. In the case of *Silibasizo Mlotshwa* v *District*

[4] Chapter 29:17
[5] SC 45/22

Administrator, Hwange District N.O and Others[6] MATHONSI J (as he then was) held thus:

> "*In other words, the process of selection at the level of the provincial assembly and the responsible minister and the recommendations they make to the president can still be subjected to judicial review while the appointment by the President cannot as it is executive discretion. What has changed however is that the dispute must first and foremost be submitted to none other than the President himself for resolution*."

7. The foregoing is the position of the law in Zimbabwe and the extent this court can go in looking at the grounds to review the conduct of the Minister, the Provincial and National Council of Chiefs in making the recommendations for an appointment of Chiefs. The cardinal principle is that whoever deals with the preliminary enquiry and ultimate recommendation should and ought to critically and faithfully rely on the traditional practices and cultural norms of each subject chieftaincy in the spotlight. In the event of any detour or deviation on these considerations such recommendations become subject of criticism by law practitioners as well as stake-holders in that chieftainship dispute.
8. *Tradition* connotes custom, common law or immemorial usage or more precisely relates to ancient wisdom or ways of the fathers. The word bears elements of legend mythology or archetypal myths which can be traced to periods of evolution and centuries old, referred by the famous writer Yeats as "***Spiritus Mundi***". The concept of ***traditionality*** or ***traditionalism*** in chieftainship issues transcends to the founding generation of chiefs which has been passed from generation to generation of the spirit mediums. Most of that tradition is deliberately kept as secrets of each clan or chieftaincy, it is protected from the generality of the public for sanctity purposes only performed by chosen elites of the dynasty. Aligned to this very important concept is the word ***customary*** which alludes to ***traditionally time-honored familiar practice***, accepted by the clan or tribe as prevalent and generally observed to the full by that clan. Anyone who does not conform to such traditional etiquette would be regarded as being in violation of such practice. The accepted standard traditional norm would form an identification tag peculiar to that community. Aligned to tradition and custom is culture, the key trait, system of vales or ethos, folkways of the chieftainship which has developed for centuries and adopted and practiced generation after generation.

[6] HH 161/16

Culture can be described as a system of shared meaning of the community or clan that determines in large degree how traditional leaders are chosen in conformity to the old systems spelt out or prescribed by the founding chief. It is a perception members of the clan perceive as the basis of what they value on the candidate or nominee, that chief would be expected to perpetuate the culture and derive respect of his people.

9. Applicant and sixth respondent allege in their papers that the Minister, first respondent, did not follow the dictates of the Constitution and the Traditional Leaders Act. The first respondent disregarded what the Provincial and National Chiefs Council, councils which are statutorily empowered to identify an appropriate nominee for appointment from the community. Custom and tradition is a preserve of each particular tribe, Ndebele, Shona, Shangan, Tonga, Kalanga, Manyika or Nguni, only an identified tribe would better be placed to authenticate or condemn what it regards as taboo or sacrosanct. It is my view that the selection of chiefs or traditional leaders must be left to the Kingmakers of such a tribe or clan. There is need to amend the Traditional Leaders Act as well as the Constitution not to allow aliens to make decisions affecting choice of a traditional leader. Some of the members of the Chiefs' Council within the province may not be familiar to the cultural practices of a chieftaincy they are assigned to deal with. The same applies to the National Council, Courts, Minister up to the President. The cultural norms and practices would exclusively remain guarded and confidential. A clan is forced to reveal the sanctity of the chieftainship to the councils, courts or Parliament, this was not the idea which was brought about by the founding chiefs. Even when the matter transcends to courts of law some of the presiding judiciaries will be foreigners to the customs and tradition of the tribe in dispute. Courts, Councils and politics should remain observers than being decisive decision makers for invariably given the perquisites now associated with chieftainship a completely wrong candidate would be put into power much to the anguish of the Mediums of that clan. A chief nominee must be spiritually accepted by the founders to perpetuate the values of that dynasty and loved and supported by the community. Relevant laws must be introduced by legislators aligned to the constitution. Any chief who wants to practice politics must relinquish chieftainship. The President must equally appoint and not chiefly participate in the nomination process. Rules and regulations up to the review stage must be introduced

to guide parties giving time lines within which complains can be attended to. That will create normalcy in this new field of chieftaincy dispute resolution process.

10. The recommendations made by the third and fourth respondents were not considered by the Minister. As correctly decided in the *Marange* case (*supra*), the Constitution and the Traditional Leaders Act, do not provide for a commission to process the nomination of a chief. The people constituting a commission on the selection process were not conversant with the established customs and traditions of the Zimunya people. A commission is not prescribed as a form of the selection process. It contravenes both the constitution and the Traditional Leaders Act. First respondent failed to follow the prescribed procedure and used wrong material to appraise second respondent on the appointment of a traditional leader. A traditional leader's position is ingrained and traced in his community, just like water is to fish. It is this very awkward deviation committed by the first respondent which is the cause of the action for applicant and sixth respondent which impelled them to approach the court. As clearly held in the matter of *Chagaresango* v *Chagaresango*[7]:

> "*While it is not competent for a court to investigate how the President has exercised his discretion, it may investigate whether the relevant Minister and his officials, in formulating their advice to the President, acted on sound principle. Where it was shown that the appointment of a chief deviated from the ordinary customs and tradition of the clan in question, and that the Minister had not given due consideration to the customary principles of succession before making recommendation to the President then the Minister should recommend that the President remove the person appointed contrary to the ordinary customs of the clan*."

11. It is therefore clear that the appointment of fifth respondent was not anchored firmly on the foundation of the Zimunya clan's customs and practices. The Minister completely undervalued the recommendations of the third and fourth respondents. Applicant prays for the setting aside of the appointment of fifth respondent. In the *Marange* case (*supra*) it was held[8]:

> "*It is settled law that the courts should not take the functions of an administrative authority and interfere with its actions or decisions by substituting them or setting them aside… I would extend this broad principle to postulate that, in certain limited circumstances, it might be necessary to invoke such judicial restraint even where the administrative action or decision in question is shown*

[7] 2000 (1) ZLR 99 @99F per MUCHECHETERE JA, see also Ruzane v Pamidzai & Anor 1991 (1) ZLR 273
[8] At p 11 of the cyclostyled judgment

to have been procedurally irregular. This might arise for instance, where judicial interference would entail serious administrative disruption or result in some grave miscarriage of justice."

12. On 14 November 2025 at Golden Peacock in Mutare, the third respondent (Manicaland Provincial Assembly of Chiefs) convened a meeting where it revisited the issue of the Zimunya Chieftainship and unanimously came to a conclusion that the fifth respondent was not properly appointed when the Minister, first respondent *in casu* relied on research done on his behalf. That finding is the lethal injection in the selection process, it paralysed all the veins where the chieftainship blood flows and clotted and maimed the tradition of Zimunya people. In my view, it is clear that there was no due consideration of established and accepted customary principles of succession before the first respondent made his critical recommendation to the President. Research is an alien succession process to the Zimunya clan, a chief chosen by research is born out of researchers and not tradition and does not deserve to be a traditional leader but a government appointee created as a new specie where scholars meddle with customary unique principles. A traditional chief is the fountain and custodian of customary principles carried over from generation to generation embodying values of the sanctity of the clan. Even the appointing authority has no right to interfere with this fundamental principle else there are unnatural spiritual consequences that bedevil the clan and the nation at large. The appointing authority should ensure strict compliance with tradition and make correct appointing decisions to sustain and preserve such customary principles. The application ought to succeed.
13. What relief can this court grant? I am aware that where the application is granted a court should naturally grant the relief as per the draft. applicant seeks an order declaring first respondent's recommendation for the appointment of fifth respondent to the president be declared to be flawed, unlawful and contrary to the constitution. Applicant further seeks an order declaring the first respondent's rejection of the Chiefs' Councils, unprocedural and unlawful and *inter alia* and more importantly that the appointment of fifth respondent be set aside. All these reliefs ought to be granted. What further remains is what should be the interim position awaiting the decision to be taken by the Executive? Once the procedure impugned herein is set aside the first respondent must forthwith place this judgment before second respondent making a recommendation for the removal of the fifth respondent from

the chieftainship of the Zimunya clan. The removal of the sitting chief is entirely in the domain and pleasure of the second respondent; he can act on the recommendations of this court or not but such a discretion is to be judiciously exercised in accordance with the rule of law and the Constitution. In the event that the second respondent decides to remove fifth respondent from the office, until a substantive chief is appointed, the fifth respondent will be an ideal candidate to be in an acting capacity. However, given the historical position of the Zimunya chieftainship which has been raging on since 2007 a quick resolution will be anticipated. Third and fourth respondents will be ordered to quickly deliberate on the Zimunya Chieftainship principles of succession in consultation with kingmakers, spirit mediums and all houses and elect an appropriate candidate for appointment. The results of the selection process of third and fourth respondents shall be recorded and forwarded to the first respondent which shall be the basis for a recommendation to the President on the appointment of the substantive Chief Zimunya.

Accordingly, the following is returned.

1. The application is granted with no order as to costs.
2. The recommendation of the fifth respondent for appointment as Chief Zimunya by the first respondent to the second respondent is hereby declared to be flawed, unprocedural and unconstitutional.
3. The actions of the first respondent in rejecting the advice of the third and fourth respondents and proceeding to initiate his own process in choosing Chief Zimunya without involving the Kingmakers are hereby declared to be unlawful, unprocedural and unconstitutional.
4. The appointment of the fifth respondent as substantive Chief Zimunya was unprocedural, unconstitutional, unlawful and not in accordance with the customs and usages of the Zimunya people and consequently void and is hereby set aside.
5. The first respondent is ordered forthwith to make recommendation to the second respondent for the removal of the fifth respondent from the Chieftainship of Zimunya clan.
6. Pending the process of re-selection of a substantive chief Zimunya the fifth respondent shall continue to perform the functions of acting Chief Zimunya pursuant to s 4 of the Traditional Leaders Act [*Chapter 29*:*17*]

7. The third respondent shall cause a meeting of the Zimunya clan in consultation of the Kingmakers, all houses and relevant mediums in terms of customary principles of succession to the Zimunya Chieftainship and thereafter elect a candidate for the appointment as Chief Zimunya.
8. The election or selection process of the candidate shall be recorded in a permanent form and be forwarded to the first respondent and form his basis for a recommendation to the President (second respondent) in the appointment of the next Chief Zimunya.